



February 24, 2016

Ref: 186335

All Superintendents
All Secretary-Treasurers

At the request of the Provincial Health Officer, I am writing to remind all school districts of the importance of ensuring water quality within all schools complies with Water Management Best Practices and the *Drinking Water Protection Act*.

While we have no evidence of children being adversely affected in BC, it is nonetheless important to reduce population lead exposure. The extent to which the potential for lead to enter the water supply varies depending on the type of water (soft water), acidity and length of exposure.

School Districts should work with local health authorities to establish a plan to evaluate water quality especially in schools built before the 1989 revision of the BC Plumbing Code restricting the use of lead and potable water lines, as well as to mitigate any risks identified. The plan should include:

1. Evaluating and prioritizing facilities based on age and water supply.
2. Establishing and carrying out testing of priority facilities.
3. Mitigating risks.
4. Regularly re-sampling to verify effectiveness.
5. Communicating findings.
6. Establishing a long-term management plan.

If elevated lead levels are found, a number of actions can be taken to mitigate risk. The most appropriate actions for your facilities will depend on a number of factors and should be discussed with your local drinking water officer

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Should you have questions, I am providing the following Health Authority Contacts:

Fraser Health:	1-604-587-3828 or 1-604-527-4806
Interior Health:	1-866-457-5648
Island Health:	1-866-665-6626
South Island	1-866-665-6626
Central Island	1-866-770-7798
North Island	1-877-887-8835
Northern Health:	1-250-565-2000
Vancouver Coastal Health:	1-604-675-3900 or 1-604-527-4893

Thank you to your attention to this important matter.

Sincerely,



Dave Byng
Deputy Minister

POLICY FOR TESTING LEAD CONTENT IN DRINKING WATER OF SCHOOL FACILITIES

Date came into force or revised: **September 26th, 2016**

Policy statement

School districts must test for lead content in drinking water in their school facilities to ensure quality meets established guidelines under applicable provincial and federal legislation, and report results annually to the Ministry of Education (Ministry).

School districts must take reasonable steps necessary to resolve elevated lead levels that are outside established guidelines on any drinking water quality test results.

Rationale or purpose of policy

This policy provides minimum requirements for testing lead content in drinking water of school facilities, reporting of the results, and mitigation strategies to eliminate or reduce any risks to students and staff.

This policy specifically addresses lead content in drinking water. The Ministry expects school districts to mitigate other issues that affect the quality of water as prescribed under applicable provincial and federal legislation.

Authority

[Drinking Water Protection Act](#)

[Drinking Water Protection Regulation](#)

[Public Health Act](#)

[School Act](#)

POLICY FOR TESTING LEAD CONTENT IN DRINKING WATER OF SCHOOL FACILITIES

Policy in full

All water suppliers in the province are required to test their water regularly. This includes small private systems (such as restaurants), cooperatively owned systems (such as strata properties), and larger municipal systems owned by local governments.

School districts are responsible for ensuring the quality of water within their systems and plumbing.

The Ministry is responsible to provide oversight to ensure public schools are safe and well-functioning for students and staff across the province. As such, the Ministry has established minimum requirements for lead testing in schools built prior to 1990; due to the use of lead in plumbing materials.

School districts must consult with their Regional Health Authority to develop a water quality lead testing program for their school facilities that would outline the following;

1. Risk assessment
2. Water testing
3. Communication plan
4. Mitigation strategies

A contact list for Regional Health Authorities are provided in the Contacts section of this policy.

Procedures related to policy

School districts must establish a water quality lead testing program that includes;

Risk Assessment

Must include assessment of the school district's facilities inventory including the school (building) age, historical testing results and recent improvements. This information will indicate which facilities are required to be tested for lead content in drinking water as set in the following requirements below.

POLICY FOR TESTING LEAD CONTENT IN DRINKING WATER OF SCHOOL FACILITIES

All plumbing systems that provide drinking water in school facilities shall be tested for lead content where the;

1. Plumbing systems were installed before January 1, 1990.
2. School has any history of elevated lead levels.

Water Testing Requirement

School districts are to work with their Regional Health Authority to determine a testing program in the school districts portfolio of school facilities. The testing procedure and amount of samples taken at each facility shall be determined in collaboration with the Regional Health Authority, and be based on risk.

School districts must conduct lead content testing in drinking water if the facility is being regularly utilized by students and/or staff. School district may also disable fountains and water systems to eliminate the risk of lead exposure. In this case, testing is no longer required.

School districts must complete lead content testing on all school facilities once every 3 years. Therefore a minimum of 1/3 (or 33%) of the school facilities in a school district's inventory must be tested each year.

Mitigation Strategies

If sample results reveal lead levels above the maximum allowable concentration of 0.010 mg/L as stated from the [Guidelines for Canadian Drinking Water Quality](#) by Health Canada, the school district in consultation with their Regional Health Authority must commence daily flushing immediately, or deactivate and place a "Not in Use" sign on the water source.

Mitigation solutions may include;

1. Flushing regimes
2. Deactivation of water sources and supplemental signage
3. Installation of filtration systems
4. Plumbing upgrades
5. Or other steps that result in reducing the exposure to lead to acceptable levels

POLICY FOR TESTING LEAD CONTENT IN DRINKING WATER OF SCHOOL FACILITIES

Communication and Reporting Requirements

Should testing result in elevated levels of lead, the school district must immediately inform the Ministry of the issue.

School districts shall collaboratively work with their Regional Health Authority to communicate the results of testing lead content in drinking water with parents, students and staff by describing the following;

- Rationale for testing lead in drinking water
- Identify partnership with the Regional Health Authority in solutioning
- State results of sampling
- Identify mitigation strategies implemented or being consider by the Board
- Provide contact information for the school district and the Regional Health Authority for parents, students and staff to request further information

School districts must submit all of their testing results annually to the Ministry by March 30th using the “Report for Testing Lead Content in Drinking Water of School Facilities” spreadsheet, as provided.

Links to related policies

N/A

Resources - Links to program areas, manuals, etc.

[Investigating Elevated Copper and Lead Levels In School Drinking Water](#)

[Guidelines for Canadian Drinking Water Quality - Summary Table](#)

[Minimizing Exposure to Lead from Drinking Water Distribution Systems](#)

[Guidelines for Canadian Drinking Water Quality: Guideline Technical Document – Lead](#)

[Guidance on Controlling Corrosion in Drinking Water Distribution Systems](#)

POLICY FOR TESTING LEAD CONTENT IN DRINKING WATER OF SCHOOL FACILITIES

Contacts

A current contact list for Regional Health Authorities can be found at;

[Regional Health Authorities](#)



September 27, 2016

VIA EMAIL
Ref: 190736

To: All Superintendents
All Secretary-Treasurers
All School Districts

Re: Policy for Testing Lead Content in Drinking Water of School Facilities

Having safe and well-functioning school facilities is a priority for the Ministry of Education.

As expressed in the Ministry's letter dated February 24, 2016, school districts were reminded of the importance for ensuring water quality within all schools to reduce or eliminate any risks to students and staff, and were encouraged to work with their local health authorities to establish a plan to evaluate and mitigate any issues.

School districts are the owners and operators of schools, and under the *School Act* responsible for complying with all legislation and regulations from safety and health authorities. This includes conducting tests and remediation of issues, such as lead in water, if they believe it exists.

To provide guidance to school districts with this process, the Ministry of Education has developed the attached *Policy for Testing Lead Content in Drinking Water of School Facilities*.

The policy outlines the minimum requirements for risk assessment, water testing, mitigation strategies, as well as communication and reporting requirements. The policy is also available online at [Public Schools Policies](#).

There are two key aspects of the policy which school districts must fulfill and that are in effect as of the policy's "came into force" date of September 26, 2016;

- ***School districts must complete lead content testing on all school facilities once every 3 years. Therefore a minimum of 1/3 (or 33%) of the school facilities in a school district's inventory must be tested each year.***
- ***School districts must submit all of their lead content testing results annually to the Ministry by March 30th using the "Report for Testing Lead Content in Drinking Water of School Facilities" spreadsheet.***

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To assist school districts in the requirement to submit their testing results, the Ministry has developed a fillable spreadsheet entitled *Report for Testing Lead Content in Drinking Water of School Facilities* that is available at [Current Resources](#).

To support school districts in ensuring safe and well-functioning schools, the Ministry of Education provides funding through the Annual Facility Grant (AFG) for minor projects that will extend the life of the school or address any health, safety, or emergent issues that may arise. School districts may utilize funds in their AFG to cover costs associated with the testing and remediation of issues, such as lead content in drinking water of school facilities.

School districts also have an opportunity to apply for funding of future capital projects (such as plumbing upgrades) through the School Enhancement Program (SEP), in their annual Five-Year Capital Plan submission to the Ministry of Education.

Should you have any questions, please feel free to contact me at Michael.Nyikes@gov.bc.ca

Sincerely,

A handwritten signature in blue ink that reads "Michael Nyikes".

Michael Nyikes, Director
Standards and Construction Branch

Attachments: *Policy for Testing Lead Content in Drinking Water of School Facilities*
#186335 Deputy Minister's Letter to Superintendents Secretary-Treasurers

Pc: Dave Byng, Deputy Minister, Ministry of Education
Shanna Mason, Assistant Deputy Minister, Capital Division
Ryan Spillett, Acting Executive Director, Capital Delivery Branch
Carlo Vijandre, Manager, Facility Condition, Standards and Construction Branch
All Regional Directors & Planning Officers, Capital Delivery Branch

Excellent care, for everyone,
everywhere, every time



November 18, 2016

John Blain,
Superintendent of Schools
School District 68
395 Wakesiah Avenue
Nanaimo, BC V9R 3K6

Dear Mr. Blain,

Re: Follow-up Policy for Testing Lead Content in Drinking Water of School Facilities

On behalf of the Medical Health Officers and the Health Protection and Environmental Services program at Island Health, I am writing to enquire on the status of lead sampling for the school facilities within your School District. As I am sure you are aware, the Policy for Testing Lead Content in Drinking Water of School Facilities highlights the importance of working with the Regional Health Authorities to ensure appropriate sampling methods and remediation strategies are in place.

In order to provide you with the necessary support, we are requesting you please provide us with the following information by **December 2, 2016**:

- What, if any, testing has been performed at each school;
- The test results for each school that has been tested;
- Current remediation steps that have been implemented for each school where lead levels exceed maximums;
- Current communication that is being provided to the public on lead within your schools.

If you have already been in contact with one of our local Environmental Health Officers, please confirm with me the name of that individual and forward any information that may not yet have been provided to the individual.

If you have any questions or require more time to collect the information, please feel free to contact me to discuss at 250.755.6215.

Sincerely,

Shaun Malakoe
Team Lead
Health Protection and Environmental Health
Island Health

c.c.: Dr. Paul Hasselback, Medical Health Officer, Island Health

School District No. 68 (Nanaimo-Ladysmith) SUPERINTENDENT'S OFFICE
NOV 23 2016
RECEIVED ACTION <u>Will Dirksen/PSABO</u> COPIES <u>File</u>

Health Protection & Environmental Services
3rd Floor – 6475 Metral Drive
Nanaimo BC V9T 2L9

Tel: 250-755-6215 | Fax: 250-755-3372
viha.ca



December 1, 2016

Shaun Malakoe
Team Lead
Health Protection and Environmental Health
Island Health
3rd Floor – 6475 Metral Drive
Nanaimo, BC
V9T 2L9

Dear Mr. Malakoe:

Re: Follow-up Policy for Testing Lead Content in Drinking Water of School Facilities

In response to your letter of November 18, 2016 enquiring as to the status of lead sampling in Nanaimo Ladysmith Public Schools (NLPS) facilities we can provide you with the following:

- February 24, 2016 - Ministry of Education directed all School Districts together with Local Health Authority to develop a program for testing lead content in all school facilities
- August 2016 - VIHA provided guidelines for initial testing
- September 23, 2016 - NLPS approved funding for the testing program
- September 27, 2016 - Ministry provided NLPS with developed Policy for Lead Content Testing in Drinking Water of School Facilities that includes testing of all facilities over a 3-year period
- October 12, 2016 - Tender #2483 released for retention of Environmental Consulting firm to collect samples and interpret results. Tender closed November 2, 2016
- November 16, 2016 - Tender awarded to Tetra Tech Engineering
- November 28, 2016 – Testing schedule forwarded to VIHA
- All testing and recommendations to be completed by March 10, 2017
- Ministry report to be submitted by March 31, 2017

As per Ministry policy, NLPS intends to communicate the results and remediation recommendations, as required, to both the Ministry and VIHA once testing analysis of the water samples is complete.

While Ms. Jill Lucko, VIHA Environmental Health Officer, has been contacted by this office, it is our understanding that all further communications should be directed to yourself.

Please feel free to contact me to discuss.

Sincerely

Brian Hackwood
Maintenance Manager

cc: Pete Sabo, Director of Planning & Operations